



File No.: EXP202409823

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 19, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, A.A.A.), through the agreement that is transcribed:

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File No.: EXP202409823

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 3, 2024, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to A.A.A. (hereinafter, A.A.A.), with NIF: ***NIF.1, as the responsible party for the App ***APP.1.

The facts brought to the attention of this authority are:

The complainant states that to be a “verified user” of the App (...), it is improperly and unjustifiably requested (...), a copy of both sides of the ID card, which implies collecting and storing scanned copies of ID cards or equivalent identity documents from those users who wish to verify their identity. The complainant claims that they registered on this application in November 2019 and that ***APP.1, unilaterally, decided to delete their account for non-compliance with the rules, just after having paid the fee for one year, that is, until November 2025.

They also state that when requesting the cancellation of the application, there is no record of the destruction and use of that document, as well as all personal information collected in the process and that minors are not respected, although they do not provide anything to justify these two assertions in their complaint.

Along with the complaint, the following is provided:

- Image of WhatsApp App dated 3/06/2024 with the following text:

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“We only accept the official identity card issued in your country or your Passport.”

Don't scan or photograph a copy or a photocopy of the document, use only the real document.

Try to make your document”

“Sólo aceptamos el documento de identidad oficial expedido en su país o su pasaporte.

No escanee ni fotografíe una copia o fotocopia del documento, utilice sólo el documento original.

Trate de que su documento.

(Translation not official).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGD), the aforementioned complaint was forwarded to A.A.A. for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on July 8, 2024, as evidenced by the acknowledgment of receipt in the file.

On August 7, 2024, this Agency received a response letter from A.A.A. to which the following documentation is attached:

- A. Our policy on frauds, scams, and impersonators.
- B. Anatomy of the model scammer.
- C. Communication of files according to LOPD 1998
 - o 1. Communication of registration dated 25/6/2005
 - o 2. Registration of modification of file dated 9/3/2008
 - o 3. Registration of modification of file.
 - o 4. Registration of modification of file dated 14/7/2012
 - o 5. Registration of modification of file dated 28/8/2012
- D. Extract from the RAT corresponding to the service provision of ***APP.1.
- E. Privacy and data protection policy (as published on August 7, 2024, at ***URL.1)

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- F. Opinion issued by the data protection expert: Letter of partial compliance review opinion LOPDGDD and GDPR of (...), dated 25/07/2024, which for its interest is reproduced below:

“(…):

- (...).

- (...).

(…):

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

(…).

(…)”

- G. Emails sent to the complainant as part of the interaction following violations of the terms of use.

A.A.A. states in its response letter that:

“(…)”

“The complainant is B.B.B., a user of ***APP.1 since 2018, and whose activity on the social network has generated at different times activities that contradicted the usage regulations and ultimately led to their cancellation on March 6, 2024. The chronology of the main aspects of their activity as a user is included in section 10 Summary of the complainant's activity on the social network ***APP.1.”

“Registration and most tools are free, although there is a paid subscription that users can additionally contract to gain access to additional tools specifically aimed at users who wish to make more effective use of ***APP.1.”

On another note, the responding party informs:

“The scope of (...) in which (...) intervene is a source of multiple situations that can cause injury or impairment of the rights and freedoms of individuals exercising professions in the sector with a greater incidence in (...).

As a consequence of the aforementioned risks, ***APP.1 considers it essential to carry out thorough monitoring of the information and activity that occurs on its social network.”

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"The processing of personal data to which the claim made pertains is related to the provision of the service of ***APP.1. This processing is an evolution of the processes that have been declared since 2006 in accordance with the LOPD of 1998 through the communications attached within Annex C. Currently, the security officer, a position held by the signatory of this response to the AEPD's request, has documented this activity within the Record of Processing Activities (RAT) in accordance with the documentation attached within Annex D. This processing includes various purposes which, as indicated in the RAT, are as follows:

- Allow the user to create a public profile to showcase their work and advertise their services, (...), collaborations, and other activities related to their interest in (...).
- Allow the user to find other users to collaborate with and contact them.
- Allow the user to organize (...) or collaborations so that other interested users can sign up and collaborate together.
- Allow the user to receive notifications via email or the mobile App about new users, (...), collaborations, or other events published by other users.
- Allow the user to write comments, give likes, add to favorites, and other forms of social interaction with the content published by other users.
- Allow the user to subscribe to an optional paid subscription that provides additional access to tools and special features.
- Allow the user to obtain the "Verified Identity" badge on their profile.
- Allow the user to invite other users to register.
- Communicate with users, including communications made by electronic means, for the purpose of managing and executing the paid subscription, the functions offered such as the publication of (...), communications about internal offers, news related to ***APP.1, and other purely transactional communications such as notifications about a received private message or confirmation for changing their password.

Regarding the acquisition of verified account status, A.A.A. states:

"Data collection for the acquisition of verified account status. Furthermore, users who wish to access verified account status must:

- Upload a scanned copy of their ID or identification document to the platform.

This information is uploaded to the platform and stored in the database until the administrator verifies that the identity corresponds to that declared by the user. At that moment, it is deleted from the database."

With respect to the storage of images, A.A.A. states:

- "A dedicated server where the source code and all user data are located.

The images uploaded by users are briefly stored on this server at the time of upload while they are being processed. A few seconds later, they are automatically moved to (...).

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This server and all the data it contains are located in ***LOCALIDAD.1, France, in the data center of (...).

- "Likewise, all images uploaded by users are stored in the service (...), from where they are distributed across the network of (...) to be viewed by users."

- "(...) uses the services of (...) to store a backup copy of the database. These backups are stored on the servers that (...) has in ***LOCALIDAD.2, in the (...)."

Upon receiving the claim, A.A.A. has taken the following actions:

- On 13/7/2024, 5 days after receiving the notification from the AEPD, all identity verification processes

were suspended as a preventive measure while legal advice is sought. This is the message users encounter since then when attempting to request identity verification:

“The option to verify identity has been temporarily disabled. Please try again later.”

- On 15/7/2024, the services of a data protection expert were contracted to conduct a compliance review and advise on the main actions to be taken (...).”

THIRD: On September 3, 2024, in accordance with Article 65 of the LOPDGDD, the claim was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it shall become void, and consequently, the file shall be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since A.A.A. carries out, among other processes, the collection and storage of personal data of individuals such as name, surname, photographs, date of birth, email account, and for verified users, a copy of their ID or identity document.

It is important to highlight that the application ***APP.1, as stated in its writing, A.A.A. has the following types of users, as of 2/08/2024:

- The number of active users is 27,974.

- The number of registered users is 139,979 (these are the active users from the previous point, plus those who: filled out the registration form but do not have an active profile in ***APP.1, did not fill out all the required data to create a profile, filled out their profile with incorrect or false data, voluntarily canceled their account, had their account canceled for some reason, spent too much time without accessing their account and their profile was automatically set to “invisible,” and false users created by bots or similar automated processes).

- The number of users with verified identity is 4,536.

A.A.A. carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity under Article 4.7 of the GDPR.

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The data contained in the image of the ID are considered personal data, the processing of which is subject to the regime established in the GDPR, as well as its implementing provisions, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, which states the following:

“Article 4 Definitions

For the purposes of this Regulation, the following definitions shall apply:

- 1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)

IV

Unfulfilled Obligation. Data Minimization

Letter c) of Article 5.1 of the GDPR establishes:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);"

In the present case, the complainant states that to be a verified user of ***APP.1, it is necessary to upload a copy of the ID or identity document to the application, with that copy being stored in the application’s database.

As for being a “verified user,” these are users who have been approved by the administrator for one of the following reasons: they requested that their identity be verified, the administrator deemed it necessary to verify the user’s age due to doubts that they might be a minor, and the administrator deemed it necessary to verify the user’s identity due to doubts that it might be an impersonation. Being a verified user allows the possibility of subscribing to paid services, which users can additionally contract to gain access to additional tools, especially aimed at users who wish to make more effective use of ***APP.1.

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In its response, A.A.A. confirms the requirement to attach a copy of the ID card or identity document to the application and states that this information is uploaded to the platform and stored in the database until the administrator verifies that the identity matches that declared by the user. This implies an express acknowledgment that A.A.A. is processing personal data excessively and unnecessarily:

“As described in the data collection process outlined in section 4 above, the verification process includes the temporary collection of a scanned copy of the interested party’s ID card. Although the technical measures adopted and the short retention period of the copy minimize the associated risk, they do not eliminate it entirely.” (page 25 of 81).

Furthermore, once A.A.A. became aware of the filing of the complaint with this Agency, it commissioned a report from an external expert ((...)), which explicitly states:

“The collection of scanned copies of the ID card as a method of verifying identity is intrusive and does not comply with the provisions of current legal regulations.”

Moreover, on 13/7/2024, as an immediate preventive measure, A.A.A. deactivated the account verification mechanism.

This is because verifying the accuracy of the data can be accomplished without the need to request a copy of the ID card or identity document, as there are other equally valid alternatives that allow for reliable verification of identity through identity verification systems, in accordance with legal requirements, without including a copy of the ID card. It is the respondent itself who states in its writing: "To ensure compliance with the GDPR, it is planned to change the method of identity verification to outsource this task to an external company through an API service, in order to further minimize the impact that obtaining images of users' identity documents for verification has on privacy and to achieve stricter compliance with the GDPR. For this purpose, the following services have been consulted: (...), (...) and (...). Currently, the analysis of technical requirements is underway as a preliminary step to contracting. When integrated into the current solution, the account verification process will be reactivated." (Page 26 of 81)

Recital 39 of the GDPR states that:

"...personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that their retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. To ensure that personal data is not kept longer than necessary, the data controller must establish deadlines for their deletion or periodic review..."

Thus, in conclusion, it is excessive to require a copy of the ID card to be a verified user in the ***APP.1 application, as the purpose of that processing can be achieved by other means.

Therefore, in accordance with the evidence available at this moment in the initiation of sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to A.A.A. for violation of the previously transcribed article.

V

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for infringements of this regulation..."

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Regulation indicated in sections 4, 9, and 6 shall be effective, proportionate, and deterrent in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, section 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered;
- b) the intent or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, section 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in section 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

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f) The impact on the rights of minors.

g) To appoint, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

The balance of the circumstances contemplated in Article 83.2 of the GDPR regarding the alleged infringement of the provisions of Article 5.1.c) of the GDPR allows for an initial administrative fine of €1,000.00 (ONE THOUSAND EUROS).

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame."

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, the resolution adopted may require A.A.A. to adopt the following measures within 3 months from the date of effectiveness of the resolution concluding this procedure:

- To provide evidence of the adoption of the necessary measures to ensure compliance with the provisions of Article 5.1.c) of the GDPR, without the need to request a copy of the ID or identity document for the registration of identified users in the App ***APP.1.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the pertinent measures to cease the conduct or to correct the effects of the infringement committed and to provide evidence to this AEPD of compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: That for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of €1,000.00 (ONE THOUSAND EUROS), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number indicated in the heading of this document.

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In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800.00 (EIGHT HUNDRED EUROS), resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €800.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at €600.00 (SIX HUNDRED EUROS).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for either of them, you must send to the General Sub-Directorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€800.00 or €600.00), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On March 26, 2025, A.A.A. proceeded to pay the sanction in the amount of €600.00 making use of the two reductions provided for in the initiation agreement transcribed above, which implies the

acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

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2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, A.A.A. has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing themselves of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Similarly, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the commission of the infractions and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 1,000.00 euros.

After A.A.A. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the total mentioned is applied, in accordance with Article 85 of the LPACAP, which results in a final amount of 600.00 euros.

The effectiveness of the aforementioned reductions is conditioned, in any case, on the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: DECLARE the termination of procedure EXP202409823, in accordance with the provisions established in Article 85 of the LPACAP.

THIRD: ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 3 months from the date this resolution becomes final and enforceable.

FOURTH: NOTIFY this resolution to A.A.A.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be final in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeae@pd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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